

JURISDICTIONS COMPARATIVE CHART:

SURVEY OF CONSUMER PROTECTION STATUTES

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SURVEY OF CONSUMER PROTECTION STATUTES

JURISDICTIONS	STATUTE
ALABAMA	**Code of Alabama:** § 8-19-5 : Types of acts prohibited. § 8-19-10 : Authorizes private actions. Permits recovery (in court's discretion) of up to three times actual damages and attorney's fees. http:// www.alabamaadministrativecode.state.al.us/alabama.html
ALASKA	**Alaska Statutes:** § 45.50.471 : Types of acts prohibited. § 45.50.531 : Authorizes private actions. Permits, in court's discretion, recovery of up to three times actual damages or $500, whichever is greater. § 45.50.537 : Permits recovery of attorney's fees and costs. http://www.legis.state.ak.us/folhome.htm
ARIZONA	**Arizona Revised Statutes:** § 44-1522 : Types of acts prohibited. § 44-1533 : Authorizes private actions. http://www.azleg.state.az.us/arizonarevisedstatutes.asp?title=44
ARKANSAS	**Arkansas Code:** § 4-88-107 : Types of acts prohibited. § 4-88-113 : Authorizes private suits to recover actual damages plus attorney's fees. http://www.arkleg.state.ar.us/data/resources.asp
CALIFORNIA	**California Civil Code:** § 1770 : Types of acts prohibited. § 1780 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and "[a]ny other relief that the court deems proper." http://www.leginfo.ca.gov/calaw.html
COLORADO	**Colorado Revised Statutes:** § 6-1-105 : Types of acts prohibited. § 6-1-113 : Authorizes private actions. Permits recovery of three times actual damages (if bad faith) or $500, whichever is greater, plus attorney's fees and costs. http://www.state.co.us/gov_dir/leg_dir/olls/HTML/colorado_revised_statutes.htm
CONNECTICUT	**General Statutes of Connecticut:** § 42-110b : Types of acts prohibited. § 42-110g : Authorizes private actions. Permits recovery of actual damages, and, in court's discretion, punitive damages, attorney's fees, and costs. http://www.cga.state.ct.us/2003/pub/chap735.htm#Sec42-110b.htm
DELAWARE	**Delaware Code:** § 2532 : Types of acts prohibited. § 2533 : Authorizes private actions. Permits recovery of treble damages, plus, "in exceptional cases," attorney's fees. http://www.delcode.state.de.us/title6/c025/sc02/index.htm#topofpage
DISTRICT OF COLUMBIA	**District of Columbia Code:** § 28-3904 : Types of acts prohibited. § 28-3905 : Authorizes private actions. Permits recovery of treble damages or $1500, whichever is greater, attorney's fees, and punitive damages. http://dccode.westgroup.com/home/dccodes/default.wl

JURISDICTIONS	STATUTE
FLORIDA	**Florida Statutes:** § 501.204 : Types of acts prohibited. § 501.211 : Authorizes private actions. Permits recovery of actual damages, plus attorney's fees and costs. http://www.leg.state.fl.us/citizen/documents/statutes/index.html
GEORGIA	**Georgia Code:** § 10-1-393 : Types of acts prohibited. § 10-1-399 : Authorizes private actions. Permits recovery of general damages, plus attorney's fees and costs. Permits recovery of exemplary damages for intentional violations. http:// www.legis.state.ga.us/cgi-bin/gl_codes_detail.pl?code=10-1-1
HAWAII	**Hawaii Revised Statutes:** § 480-2 : Types of acts prohibited. Authorizes private actions. § 480-13 : Permits recovery of three times actual damages or $1000, whichever is greater, plus costs and attorney's fees. http://www.consumerlaw.com/statute.html
IDAHO	**Idaho Statutes:** § 48-603 : Types of acts prohibited. § 48-608 : Authorizes private actions. Permits recovery of actual damages or $1,000, whichever is greater, plus attorney's fees and costs. The court may, in its discretion, award punitive damages. http://www3.state.id.us/idstat/TOC/idstTOC.html
ILLINOIS	**Illinois Compiled Statutes:** 815 ILCS 505/2 : Types of acts prohibited. 815 ILCS 505/10a : Authorizes private actions. Permits recovery of actual damages or "any other relief which the court deems proper," plus attorney's fees and costs.[1] http://www.legis.state.il.us/legislation/ilcs/ilcs.asp
INDIANA	**Indiana Code:** § 24-5-0.5-3 : Types of acts prohibited. § 24-5-0.5-4 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and costs http://www.state.in.us/legislative/ic/code/
IOWA	**Iowa Code:** § 714.16(2) : Types of acts prohibited. § 714.16(7) : Does not authorize private actions. Authorizes the attorney general to file lawsuits to obtain consumer reimbursement, attorney's fees, costs, and civil penalties of up to $40,000 per violation. Does not authorize private actions. http://www2.legis.state.ia.us/IACODE/1999/
KANSAS	**Kansas Statutes:** §§ 50-626, 50-627 : Types of acts prohibited. § 50-634 : Authorizes private actions. Permits recovery of actual damages or penalty under § 50-636, whichever is greater, plus attorney's fees. § 50-636 : Permits recovery of a "civil penalty . . . in a sum set by the court of not more than $10,000 for each violation." http://www.kslegislature.org/cgi-bin/statutes/index.cgi
KENTUCKY	**Kentucky Revised Statutes**: § 367.170 & § 367.175 : Types of acts prohibited. § 367.220 : Authorizes private actions. Permits recovery of actual damages, plus attorney's fees and costs. Permits party to seek punitive damages "where appropriate." http://www.lrc.state.ky.us/statrev/frontpg.htm

[1] *See Allen v. Woodfield Chevrolet, Inc.,* No. 94814, 2003 WL 22367608 (Ill.2003) (holding that section of Illinois' code referred to is unconstitutional to the extent it protects car dealers).

JURISDICTIONS	STATUTE
LOUISIANA	**Louisiana Revised Statutes:** § 51:1405 : Types of acts prohibited. § 51:1409 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and costs, plus three times actual damages if unfair or deceptive act was knowing. http://www.legis.state.la.us/tsrs/search.htm
MAINE	**Maine Revised Statutes:** 10 § 1212 : Types of acts prohibited. 10 § 1213 : Authorizes private actions for equitable relief. Permits recovery of attorney's fees and costs in "exceptional cases" when violation was willful. http://janus.state.me.us/legis/statutes/
MARYLAND	**Maryland Statutes:** § 13-301 : Types of acts prohibited. § 13-408 : Authorizes private actions. Permits recovery of actual damages, plus attorney's fees. http://mlis.state.md.us/cgi-win/web_statutes.exe
MASSACHUSETTS	**General Laws of Massachusetts:** Chap. 93A § 2 : Types of acts prohibited. Chap. 93A § 9 : Authorizes private actions. Permits recovery of actual damages or $25, whatever is greater, and attorney's fees and costs; plus two to three times actual damages if the court finds that the violation was "willful or knowing." http://www.state.ma.us/legis/laws/mgl/
MICHIGAN	**Michigan Compiled Laws:** § 445.903 : Types of acts prohibited. § 445.911 : Authorizes private actions. Permits recovery of actual damages or $250, whichever is greater, plus attorney's fees. http://michiganlegislature.org/
MINNESOTA	**Minnesota Statutes:** § 325D.44 : Types of acts prohibited. § 325D.45 : Authorizes private actions for injunctive relief, in addition to "remedies otherwise available against the same conduct under the common law or other statutes of this state." Permits recovery of "costs." Also permits recovery of attorney's fees if the violation was knowing. http://www.leg.state.mn.us/leg/statutes.htm
MISSISSIPPI	**Mississippi Code:** § 75-24-5 : Types of acts prohibited. § 75-24-15 : Authorizes private actions after "a reasonable attempt to resolve any claim through an informal dispute settlement program approved by the Attorney General." Permits recovery of actual damages, but does not permit recovery of costs and attorney's fees (except by defendant in a frivolous action). http://www.sos.state.ms.us/ed_pubs/mscode/
MISSOURI	**Missouri Revised Statutes:** § 407.020 : Types of acts prohibited. § 407.025 : Authorizes private actions. Permits recovery of actual damages. Also permits, in court's discretion, recovery of punitive damages and attorney's fees. http://www.moga.state.mo.us/homestat.asp
MONTANA	**Montana Code:** § 30-14-103 & 30-14-104 : Types of acts prohibited. § 30-14-133 : Authorizes private actions. Permits recovery of actual damages or $500, whichever is greater, plus attorney's fees. Also permits, in court's discretion, recovery of up to three times actual damages. http://leg.state.mt.us/css/mtcode_const/laws.asp

JURISDICTIONS	STATUTE
NEBRASKA	**Nebraska Revised Statutes:** § 59-1602 : Types of acts prohibited. § 59-1609 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and costs. Court may increase award to reflect actual damages not susceptible to ordinary pecuniary measure, not to exceed $1,000. http://statutes.unicam.state.ne.us/
NEVADA	**Nevada Revised Statutes:** §§ 119.330 (misrepresentation/fraud), 482.351 (bait & switch), 482.36655 to 482.36667 (sale of automobiles), and 598.0915 to 598.0925 (deceptive trade practice): Types of acts prohibited. § 41.600 : Authorizes private actions for consumer fraud. Permits recovery of actual damages, costs and attorney's fees. Chapter 598 authorizes attorney general to take action against deceptive trade practices, but permits injured parties to share in recovery up to their actual damages (see § 598.0993). Authorizes private actions only by elderly or disabled victims (see § 598.0977). http://www.leg.state.nv.us/law1.cfm
NEW HAMPSHIRE	**New Hampshire Revised Statutes:** § 358-A:2 : Types of acts prohibited. § 358-A:10 : Authorizes private actions. Permits recovery of actual damages or $1,000, whichever is greater, plus costs and attorney's fees. Also permits recovery of two to three times actual damages if violation was willful or knowing. http://www.gencourt.state.nh.us/rsa/html/indexes/default.asp
NEW JERSEY	**New Jersey Statutes:** § 56:8-2 : Types of acts prohibited. § 56:8-2.11 : Permits recovery of "all moneys acquired by means of any practice declared" unlawful. § 56:8-2.12 : Authorizes private actions. § 56:8-2.13 : Preserves additional rights granted by statute or at common law. http://www.njleg.state.nj.us/
NEW MEXICO	**New Mexico Statutes:** § 57-12-2 and § 57-12-3: Types of acts prohibited. § 57-12-10 : Authorizes private actions. Permits recovery of actual damages or $100, whichever is greater, plus attorney's fees and costs. Also permits recovery of three times damages or $300, whichever is greater, if violation was willful. http://legis.state.nm.us/newsite/default.asp
NEW YORK	**New York Consolidated Laws:** NY CLS Gen. Bus. § 349(a): Types of acts prohibited. NY CLS Gen. Bus. § 349(h): Authorizes private actions. Permits recovery of actual damages or $50, whichever is greater, plus, in court's discretion, attorney's fees. Also permits up to three times damages or $1,000, whichever is less, if violation was willful or knowing. http://assembly.state.ny.us/leg/?cl=0
NORTH CAROLINA	**North Carolina General Statutes:** § 75-1.1 : Types of acts prohibited. § 75-16 : Authorizes private actions. Permits recovery of treble damages. § 75-16.1 : Permits, in court's discretion, award of attorney's fees. http://www.ncleg.net/statutes/statutes.asp
NORTH DAKOTA	**North Dakota Century Code:** § 51-15-02 : Types of acts prohibited. § 51-15-09 : Authorizes private actions. Permits recovery of up to three times actual damages, plus attorney's fees and costs if defendant(s) knowingly committed the conduct. http://www.state.nd.us/lr/information/statutes/cent-code.html

JURISDICTIONS	STATUTE
OHIO	**Ohio Revised Code:** §§ 1345.02, 1345.03 : Types of acts prohibited. § 1345.09 : Authorizes private actions. Permits recovery of three times actual damages or $200, whichever is greater, plus, in court's discretion, attorney's fees if violation was knowing. http://www.legislature.state.oh.us/laws.cfm
OKLAHOMA	**Oklahoma Statutes:** 15 Ok. Stat. §753 : Types of acts prohibited. 15 Ok. Stat. §161.1 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and costs. http://www.lsb.state.ok.us/osStatuesTitle.html
OREGON	**Oregon Revised Statutes:** § 646.608 : Types of acts prohibited. § 646.638 : Authorizes private actions. Permits recovery of actual damages or $200, whichever is greater, plus punitive damages and, in court's discretion, attorney's fees. http://www.leg.state.or.us/ors/
PENNSYLVANIA	**Pennsylvania Statutes:** 73 P.S. § 201-2 & 201-3: Types of acts prohibited. 73 P.S. § 201-9.2 : Authorizes private actions. Permits recovery of actual damages or $100, whichever is greater. Also permits, in court's discretion, recovery of up to three times actual damages. http://www.pacode.com/
RHODE ISLAND	**General Laws of Rhode Island:** § 6-13.1-2 : Types of acts prohibited. § 6-13.1-5.2 : Authorizes private actions. Permits recovery of actual damages or $200, whichever is greater, plus, in court's discretion, punitive damages, attorney's fees, and/or costs. http://www.rilin.state.ri.us/Statutes/Statutes.html
SOUTH CAROLINA	**South Carolina Code of Laws:** § 39-5-20 : Types of acts prohibited. § 39-5-140 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and costs, plus three times actual damages in cases involving willful or knowing violations. http://www.scstatehouse.net/code/statmast.htm
SOUTH DAKOTA	**South Dakota Codified Laws:** § 37-24-6 : Types of acts prohibited. § 37-24-31 : Authorizes private actions to recover actual damages. http://legis.state.sd.us/statutes/index.htm
TENNESSEE	**Tennessee Code:** § 47-18-104 : Types of acts prohibited. § 47-18-109 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and costs, plus three times actual damages in cases involving willful or knowing violations. http://www.michie.com/resources1.html
TEXAS	**Texas Statutes:** § 17.46 : Types of acts prohibited. § 17.50 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and costs, plus damages for mental anguish and three times actual damages in cases involving knowing or intentional violations. http://www.capitol.state.tx.us/statutes/statutes.html
UTAH	**Utah Code:** § 13-11-4 : Types of acts prohibited. § 13-11-19 : Authorizes private actions. Permits recovery of actual damages or $2,000, whichever is greater, plus attorney's fees and costs. http://www.le.state.ut.us/~code/code.htm

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VERMONT	**Vermont Statutes:** Title 9 § 2453 : Types of acts prohibited. Title 9 § 2461 : Authorizes private actions. Permits recovery of actual damages, exemplary damages of up to three times actual damages, and attorney's fees. http://www.leg.state.vt.us/statutes/statutes.htm
VIRGINIA	**Code of Virginia:** § 59.1-200 : Types of acts prohibited. § 59.1-204 : Authorizes private actions. Permits recovery of actual damages or $500, whichever is greater, plus attorney's fees and costs. Also permits recovery of up to three times actual damages or $1,000, whichever is greater, if violation was willful. http://leg1.state.va.us/000/src.htm
WASHINGTON	**Revised Code of Washington:** § 19.86.020 : Types of acts prohibited. § 19.86.090 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and costs, plus, in court's discretion, up to three times actual damages or $10,000, whichever is less. http://www.leg.wa.gov/wsladm/rcw.htm
WEST VIRGINIA	**West Virginia Code:** § 46A-6-102 through §46A-6-104: Types of acts prohibited. § 46A-6-106 : Authorizes private actions. Permits recovery of actual damages or $200, whichever is greater. http://www.legis.state.wv.us/legishp.html
WISCONSIN	**Wisconsin Statutes:** § 100.18(1) : Types of acts prohibited. § 100.18(11)(b)2 : Authorizes private actions. Permits recovery of actual damages, attorney's fees, and costs. Permits recovery of two times actual damages if act was in violation of injunction issued under this section. http://www.legis.state.wi.us/rsb/stats.html
WYOMING	**Wyoming Statutes:** § 40-12-105 : Types of acts prohibited. § 40-12-108 : Authorizes private actions. Permits recovery of actual damages. http://legisweb.state.wy.us/statutes/statutes.htm

Note: This document is intended to provide a general overview of the pertinent laws in each state. Many of the statutes listed are complex, and do not lend themselves to a concise summary. While we have made every effort to verify the accuracy of the materials summarized as of the date indicated, these statutes are subject to revision, amendment and modification, as well as to differing court interpretations. It therefore is intended that this document should serve only as a guideline, for purposes of general reference, and is not a substitute for legal research and analysis. It also should be noted that a number of states have laws that regulate deceptive practices in specific areas, ranging from telephone solicitation to provision of funeral services. This summary only addresses laws of general applicability. Some states also permit larger recovery for particular classes of individuals, including the elderly and the disabled. Please feel free to contact any Cozen O'Connor attorney for additional information and assistance.